

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM04
HON. JUDGE Carol L. Henson

Date 12/05/2025

Court Room Rules and Notices

#	Case Name	Tentative
1	Witham – Conservatorship (2023 – 01360745)	MJOP The Orange County Public Guardian’s Motion for Judgment on the Pleadings (ROA 212) seeking appointment as conservator of the person and estate of Dixeen Witham (“Petition,” ROA 2) is GRANTED. The Public Guardian’s petition (ROA 80) is APPROVED. The Request for Judicial Notice filed in support of the Public Guardian’s petition for conservatorship (ROA 197) is GRANTED as to Exhibits 1-11. <u>Relevant Procedural Background.</u> On November 13, 2023, David Roberts filed a petition to be appointed conservator of his mother, Dixeen Witham. (ROA 1) At the initial hearing on the petition, the court appointed counsel for Witham. (ROA 14) On January 18, 2024, after Witham’s counsel raised concerns regarding Roberts’ alleged treatment of Witham, the court also appointed a Guardian ad Litem (“GAL”) for Witham. (ROA 39) In addition, the court ordered Roberts to cooperate with Witham’s counsel and the GAL to arrange separate meetings where each could meet privately with Witham. (<i>Id.</i>) At the following hearing in early February, the GAL informed the court she had not been allowed to meet with Witham. On February 28, 2024, Witham’s counsel informed the court she had not been allowed to meet with Witham. (ROA 63) In a separate proceeding, a protective order was put in place against Roberts vis-à-vis Witham. (ROA 74) At a hearing on March 27, 2024, the Public Guardian verbally requested to be appointed Temporary Conservator of Witham. That request was granted. (ROA 74) (The Public Guardian has been Witham’s Temporary Conservator since that time.) On April 19, 2024, the Public Guardian filed a petition seeking to be appointed conservator of Witham’s person and estate. (the “PG Petition,” ROA 80) Robert’s Petition suffered from numerous deficiencies which were not resolved. Accordingly, on March 12, 2025, the Petition was dismissed without prejudice for failure to address and clear procedural defects. (ROA 170)

	For various reasons, the matter has not yet been tried, and on November 3, 2025, the Public Guardian filed a Motion for Judgment on the Pleadings which is before the court this day. <u>Motion for judgment on the pleadings.</u> The motion for judgment on the pleadings ("MJOP") seeks judgment on the PG Petition and appointment of the Public Guardian as conservator of Witham's person and estate. A petitioner moving for judgment on the pleadings must demonstrate "the [petition] states facts sufficient to constitute a cause or causes of action against the [respondent] and the [objections] do[] not state facts sufficient to constitute a defense to the [petition]." (CCP § 438(c)(1)(A).) "As a leading Supreme Court case puts it, a plaintiff's motion for judgment on the pleadings '<i>admits the untruths of [its] own allegations insofar as they have been controverted,</i>' and 'all such averments must be disregarded when there is a direct and specific denial or an indirect denial by virtue of affirmative allegations of a contrary state of facts.' Or as <i>MacIsaac</i> elsewhere said, we assume as true all facts properly pleaded in the answer and disregard all controverted allegations in the complaint." (<i>Alameda County Waste Management Authority v. Waste Connections US, Inc.</i> (2021) 67 Cal.App.5th 1162, 1196-1197, citing <i>MacIsaac v. Pozzo</i> (1945) 26 Cal.2d 809, 812-813; see also <i>Adjustment Corp. v. Hollywood Hardware & Paint Co.</i> (1939) 35 Cal.App.2d 566, 569-570: ["A plaintiff may test the sufficiency of an answer by a motion for judgment on the pleadings, and may thereby recover judgment, without the introduction of any evidence, if his complaint states facts sufficient to constitute a cause of action, and the answer, as interposed by the defendant ... neither raises any material issue nor states a defense, i.e., where the answer expressly or substantially admits or does not sufficiently deny all the material allegations of the complaint [citation], and sets up no new matter which is sufficient to bar or defeat the action."]; and <i>Sebago, Inc. v. City of Alameda</i> (1989) 211 Cal.App.3d 1372, 1379-1380 ["Motions by a plaintiff for judgment on the pleadings . . . are the equivalent of a demurrer to an answer, and the standard of review is obverse: the appellate court will assume the truth of all facts properly pleaded in the answer and will disregard the controverted allegations of the complaint."].) Here, the allegations of the PG Petition are sufficient to support appointment of the Public Guardian as conservator. Neither Mr. Roberts nor anyone else has filed objections to the PG Petition. There is no competing petition. The capacity declaration filed on April 19, 2024, of which the court takes judicial notice, establishes that Dixeen Witham has a major neurocognitive disorder and lacks the capacity to give informed consent to any form of medical treatment. (ROA 82) The recommendation is that conservatorship by the Public Guardian is "essential." (<i>Id.</i>) Roberts, himself, has stipulated Dixeen Witham is unable to provide for her personal needs
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		(health, food, clothing, shelter) and unable to manage her financial resources or resist fraud and undue influence. (ROA 199) There is no dispute that Dixeen Witham requires a conservator, and the verified allegations of the Petition are sufficient to support judgment on the pleadings. Therefore, the MJOP is GRANTED. Having reviewed the investigation report and pleadings, the court finds that a conservatorship of the person and estate is the least restrictive alternative for the care and finances of Dixeen Witham and that the proposed conservator is suitable and appoints the Public Guardian as conservator of the person and estate. The court grants exclusive medical powers under PC 2355 and makes the findings of PC 1881, EXCEPT there is to be no withdrawal of life-sustaining treatment without prior notice to Court Appointed Counsel, Samantha Jones. The court grants major neurocognitive disorder powers under PC 2356.5 as to facility and medications and makes the findings of PC 2356.5. The conservatee IS NOT disqualified from voting. \$650 assessment is waived Bond is not required Samantha Jones is retained as counsel for the conservatee. <i>Requires order (GC-340), letters (GC-350), notice of conservatee's rights (GC-341), level of care declaration (GC-355), inventory & appraisal (GC-040), notice of inventory & appraisal (GC-042), Requires investigation report and accounting at the one-year mark, unless accounting is waived. Requires investigation report and accounting every two years thereafter, unless special circumstances apply.</i>
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